STANDARD OPERATING PROCEDURE			P-3230
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA GREG LONDON SHERIFF	DATE ISSUED 06/01/06	DATE REVISED **06/04/25**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES			
SUBJECT IN-CAR AUDIO/VIDEO RECORDING SYSTEM	CROSS REFERENCE I-6200 Evidence and Property P-3200 Patrol Unit G-8500 Annual Training and Policy Review			

I. Purpose:

The purpose of this policy is to establish guidelines for the proper use of in-car audio/video recording systems; establish procedures for securing evidence obtained on the systems; and establish the procedures for storing and maintaining the videos produced by the equipment.

II. Policy:

It is the policy of the Sarpy County Sheriff's Office to utilize in-car recording systems solely for legitimate public safety purposes. In-car recording system use shall be consistent with this policy and the law and shall be used in a professional and ethical manner. All employees using in-car recording systems and/or accessing the technology shall be appropriately trained and supervised in its use.

III. Definitions:

A. EVIDENTIARY VALUE: For purposes of this policy, evidentiary value shall mean any such recordings that may reasonably be of value as evidence for:

1. The prosecution of any criminal, juvenile, or board of mental health matter, including evidence that may implicate, exculpate, or exonerate a person from an offense; or,

2. The litigation of any reasonably foreseeable civil matter that may involve the Sarpy County Sheriff's Office as a litigant.

3. Internal Investigations, Line Investigations, and/or Incident Reviews.

IV. Procedure:

A. Procedures for in-car recording system use:

1. Prior to use, all deputies shall be trained in the use of the technology and this policy.

a) Initial training is to include:

(1) Sheriff's Office policies and applicable laws.
(2) Procedures for operating the in-car recording system.
(3) Procedures for tagging recorded data captured by the system.
(4) Procedures for uploading, accessing, and reviewing the data.
(5) Procedures for documenting and reporting a malfunction.
(6) Retention and production requirements.

b) Annual training may include:

(1) Technology updates
(2) Policies and laws

c) Supervisor Training: In addition to initial training, supervisors shall receive training on supervisory responsibilities.

2. Installation and maintenance of in-car recording systems shall be performed by Sarpy County Fleet Services and Sheriff's Office IS Support.

3. Prior to the beginning of each shift, each deputy shall test the in-car recording system in his or her assigned patrol unit and ensure it is functioning properly.

a) If the system is not functioning properly the deputy shall:

(1) Inform their supervisor.
(2) Place the patrol unit out of service.
(3) Send a request to "Sheriff Help Desk" via email to troubleshoot the issue.

4. The in-car recording system is designed to begin recording when the patrol unit's emergency lights are activated; the patrol unit has been involved in an accident; when manually activated on the control panel; or when a synced BWC is activated.

5. Deputies shall record all traffic stops, traffic arrests, field sobriety tests, and pursuits.

6. If a deputy is facing an immediate threat to his or her safety that makes activating the video impossible or dangerous, the deputy should activate the recording at the first reasonable opportunity to do so.

7. When appropriate, deputies should narrate important facts and observations as they occur.

8. Deputies should manually activate the in-car recording system as soon as possible to record the driving performance of a motorist that may provide probable cause for a traffic stop or an arrest, specifically when following a suspected intoxicated driver to capture any impaired driving behavior.

9. Deputies shall record any time a suspect is transported in a patrol unit (The rear-facing camera or camera for the transport cage shall be activated). The videos recording suspect transportation need only be logged as evidence if they contain evidentiary statements or actions on the part of the suspect.

10. The in-car recording system should not be deactivated until the contact has fully concluded.

11. If a deputy fails to activate the in-car video system, fails to record the entire contact, or interrupts the recording, the deputy shall document in a written report why a recording was not made, was interrupted, or was terminated.

12. Communications should not be muted between deputies and the public, e.g., witnesses, victims, etc. Conversations involving tactics, operations or investigations may be muted between deputies and other law enforcement entities, e.g., County Attorney's Office, supervisors, and other officers.

13. Prior to deactivating the recording, the deputy shall record a short verbal reason for the deactivation as documentation.

14. Deputies shall not edit, alter, erase, duplicate, copy, share, or otherwise distribute in any manner in-car audio/video recordings

without prior written authorization and approval of Sheriff or his designee.

15. Deputies shall note in their reports when recordings were made during an incident.

16. Deputies shall attempt to transfer the in-car recording data prior to the end of their shift.

17. In-car recording system data containing information that may be of evidentiary value for prosecution in any criminal or civil proceeding shall be safeguarded as evidence pursuant to SOP I-6200 Evidence and Property and shall be submitted prior to the end of the deputy's shift.

B. Restrictions on using the in-car recording system:

1. In-car recording systems shall only be used in conjunction with official law enforcement duties. The system shall not be used to record:

a) Casual or non-call related conversation between Sheriff's Office employees.

b) Encounters with undercover officers or confidential informants.

c) When on break or otherwise engaged in personal activities.

C. Data Review:

1. Recordings may be reviewed in any of the following situations:

a) For use when preparing reports, statements, or for court room testimony, unless it is determined to have "Restricted Access" by the Sheriff or authorized designee:

b) By a supervisor to investigate and/or defend complaints made against deputies.

c) By a supervisor following a critical incident.

d) By an investigator who is participating in an official investigation.

e) To assess proper functioning of recording technology.

f) For official training purposes.

g) When provided by the Property and Evidence Unit to authorized Sarpy County Attorney personnel for legal proceedings.

h) Upon authorization of the Sheriff or designee.

2. Deputies only have direct access to view their own recordings.

3. Members of the public shall not be allowed to review recordings at the scene of the contact.

4. Employees who have not received in-car recording system training are prohibited from accessing or distributing data.

5. An audit trail exists to track all access to recordings by the video management system.

6. No employee will access or obtain data for personal use.

D. Duplication:

1. Recorded video data shall not be duplicated except with the approval of the Sheriff, Command personnel or at the request of the County Attorney's Office.

2. Any video data that has been logged into evidence for a pending criminal prosecution shall not be duplicated unless such duplication is approved the County Attorney's Office.

3. Only the Sheriff or Sheriff's designee may authorize release of recorded video data to the public and/or other law enforcement agencies.

4. Supervisors completing internal investigations/reviews are authorized to duplicate recorded videos when necessary to assist in the investigation.

E. Data Storage and Retention:

1. The Sarpy County Evidence Unit will manage the storage, duplication, and dissemination of recordings. The software shall maintain a chain of custody for each recording.

2. All in-car recording system data is the property of the Sarpy County Sheriff's Office, which shall be preserved and retained in accordance with state law and agency evidence protocols. The in-car recording system data, images, video, and metadata captured, recorded, or otherwise produced by the equipment is the sole property of this agency.

3. Retention of data shall comply with applicable laws; court orders or litigation holds governing record retention.

4. Video data files containing no evidentiary value shall be maintained for 90 days, at which time they will be deleted automatically by the video management system.

5. Video data with evidentiary value shall be retained:

a) Until final judgement is entered in a civil or criminal proceeding.

b) Until final determination on a complaint or when discipline has finalized; and/or

c) Until an investigation has been officially cleared, closed, or suspended if the investigation does not result in an arrest or is not prosecuted.

F. Complaints:

a) If a complaint against a deputy is received, the Professional Standards Unit shall have access to all related videos.

b) If a complaint incident was recorded, the video shall become evidence to be retained by the assigned investigating deputy and shall be used for any purpose that may serve in an internal investigation including disciplinary action against the employee.

G. Policy Compliance:

1. Road Patrol command officers and supervisors shall review a minimum of three recorded events per subordinate each semi-annual period.

a) The review is to ensure in-car recording system equipment is functioning properly and is being used in compliance with Sheriff's Office policy.

b) The review shall be documented on the Video Captured Data Review Form.

H. Policy Review:

1. The in-car audio/video recording system policy shall be reviewed as part of the annual training and policy review (see G-8500 Annual Training and Policy Review).